

Senate File 2284

S-5235

1 Amend the House amendment, S-5192, to Senate File 2284, as
2 amended, passed, and reprinted by the Senate, as follows:

3 1. Page 1, line 5, by striking <subsection> and inserting
4 <subsections>

5 2. Page 1, after line 16 by inserting:

6 <NEW SUBSECTION. 3A. "Highway" means as defined in section
7 321.1 and includes a street.

8 Sec. _____. Section 321P.3, Code 2026, is amended by adding
9 the following new subsection:

10 NEW SUBSECTION. 4. a. Except as provided in paragraph
11 "b", a local authority shall not operate more than two mobile
12 systems.

13 b. A local authority with a population of ninety thousand
14 or more based on the most recent federal decennial census may
15 operate up to four mobile systems. Notwithstanding section
16 321P.8, a local authority that operates more than two mobile
17 systems shall deposit all revenue received as a result of the
18 use of a mobile system and retained by the local authority in a
19 fund the local authority maintains for first responder pension
20 and benefits including but not limited to trust and agency
21 funds, if established pursuant to section 384.6.>

22 _____. Page 2, after line 2 by inserting:

23 <Sec. _____. Section 321P.5, subsection 1, paragraphs b and c,
24 Code 2026, are amended to read as follows:

25 b. (1) A local authority shall not operate a mobile
26 automated or remote system for traffic law enforcement unless
27 permanent signs meeting the requirements as specified in the
28 department manual on uniform traffic-control devices and giving
29 notice of the local authority's use of a mobile system within
30 the boundaries of the local authority are posted at every
31 location where a highway enters the boundaries of the local
32 authority.

33 (2) In addition to the required signage under subparagraph
34 (1), a local authority operating a mobile system shall place
35 nonpermanent signs giving notice of the mobile system at least

1 five hundred feet but not more than one thousand feet along the
2 approach of the highway where the mobile system is used. Signs
3 placed pursuant to this subparagraph shall be removed when the
4 mobile system is relocated.

5 c. Signs required under this subsection shall be erected
6 by the local authority at the local authority's expense and,
7 except for signs required under paragraph "b", subparagraph
8 (2), at least thirty days prior to a system enforcing any
9 detected violations. Signs required under this subsection must
10 be illuminated in accordance with the department manual on
11 uniform traffic-control devices.

12 Sec. _____. Section 321P.5, Code 2026, is amended by adding
13 the following new subsections:

14 NEW SUBSECTION. 1A. If a sign is required along the
15 approach of the highway where a system is used, the local
16 authority shall not erect or place the sign at a location
17 that has a different speed limit than the speed limit that is
18 enforced by the system.

19 NEW SUBSECTION. 1B. A local authority that does not hold a
20 valid permit to use an automated or remote system for traffic
21 law enforcement, as required in section 321P.2, shall not erect
22 or place a sign giving notice that a system is used.>>

23 3. Page 2, by striking line 16 and inserting <authorized
24 under section 321P.20 or 321P.24, as applicable.>

25 4. Page 3, line 4, after <year.> by inserting <A search log
26 maintained pursuant to this subsection is a confidential record
27 under section 22.7.>

28 5. Page 3, by striking lines 14 through 16 and inserting
29 <search log at least every four months.>

30 6. Page 3, line 29, before <applicable> by inserting <the
31 entity's>

32 7. Page 4, line 2, by striking <a copy of an> and inserting
33 <any>

34 8. Page 4, line 25, by striking <counsel, an insurer, or
35 another person> and inserting <counsel or an insurer>

1 9. Page 5, line 22, by striking <one year> and inserting
2 <two years>
3 10. Page 5, line 24, by striking <one year.> and inserting
4 <two years.>
5 11. Page 6, after line 2 by inserting:
6 <Sec. _____. EFFECTIVE DATE.
7 1. The sections of this Act amending section 321P.5 take
8 effect October 1, 2026.
9 2. The sections of this Act enacting sections 321P.20,
10 321P.21, 321P.22, 321P.23, 321P.24, 321P.25, and 321P.26 take
11 effect January 1, 2027.
12 3. The section of this Act repealing section 321P.4 takes
13 effect January 1, 2027.>>
14 12. Page 6, by striking lines 3 and 4 and inserting:
15 <_____. Title page, lines 2 and 3, by striking <and making
16 penalties applicable.> and inserting <providing penalties, and
17 including effective date provisions.>>
18 13. By renumbering as necessary.

ADRIAN DICKEY